

23CV00147 PCA Acquisitions V LLC vs Krishna Beberino

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-05-22

Motion: Entry of Judgment

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Tentative Ruling: PCA Acquisitions V LLC vs Krishna Beberino

Case Number

23CV00147

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 05/22/2026 - 10:00

Nature of Proceedings

Entry of Judgment

Tentative Ruling

For all reasons discussed herein, the motion to enter judgment pursuant to Code of Civil Procedure section 664.6 is granted in the amount of \$2,453.24. Costs are awarded in the amount of \$283.24 for a total judgment of \$2,736.48. The court intends on signing the proposed order and judgment submitted by plaintiff.

Background:

This action commenced on January 12, 2023, by the filing of the complaint by plaintiff PCA Acquisitions V, LLC against defendant Krishna Beberino aka Krishna Marie Beberino for money due on account stated and open book account.

By way of the complaint, plaintiff alleges that on February 23, 2018, Synchrony Bank provided defendant with a credit account that defendant used to make purchases, take cash advances, or make balance transfers, each time reaffirming her

agreement to repay Synchrony Bank, and its successors in interest, for the amount of the purchases, cash advances, or balance transfers.(Compl., ¶ 2.)

The debt balance at charge-off was \$2,453.24, and the date of last payment was February 9, 2019. (Compl., ¶¶ 4, 5.) Prior to the commencement of the action, the account was assigned or otherwise transferred to plaintiff. (Compl., ¶ 8.)

On April 3, 2023, defendant answered the complaint with a general denial and several affirmative defenses.

On April 18, 2024, plaintiff filed a conditional Notice of Settlement of Entire Case

Plaintiff and defendant settled the case by entering into a settlement agreement wherein no judgment would be entered against defendant so long as defendant paid an agreed settlement about in monthly installments. (Penuela decl., ¶ 4 & Exh. 1.) The terms of the stipulation require defendant to make a minimum payment of \$72.00 on or before April 10, 2024, and thereafter pay a minimum of \$72.00 on or before the 10th day of each consecutive month through and including February 10, 2026, followed by a final payment, by March 10, 2026, of \$62.00. (Exh. 1, ¶ 1.)

Under the terms of the stipulation, as of January 20, 2026, defendant should have paid \$1,718.00, but plaintiff received nothing. (Penuela decl., ¶ 5.) The owed balance on the debt is \$2,453.24 in principal and \$283.24 in costs. (Penuela decl., ¶ 7.)

Plaintiff now moves, pursuant to Code of Civil Procedure section 664.6, for entry of judgment pursuant to the terms of the settlement agreement.

The motion was properly served on defendant's counsel of record on March 25, 2026.

Defendant has not filed opposition or any other response to the motion.

Analysis:

Code of Civil Procedure section 664.6 provides:

"(a) If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

"(b) For purposes of this section, a writing is signed by a party if it is signed by any of the following:

"(1) The party.

"(2) An attorney who represents the party.

"(3) If the party is an insurer, an agent who is authorized in writing by the insurer to sign on the insurer's behalf.

“(c) Paragraphs (2) and (3) of subdivision (b) do not apply in a civil harassment action, an action brought pursuant to the Family Code, an action brought pursuant to the Probate Code, or a matter that is being adjudicated in a juvenile court or a dependency court.

“(d) In addition to any available civil remedies, an attorney who signs a writing on behalf of a party pursuant to subdivision (b) without the party’s express authorization shall, absent good cause, be subject to professional discipline.”

“A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement.” (Hines v. Lukes (2008) Cal.App.4th 1174, 1182.) “If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement.” (Id.)

A court hearing a motion brought under section 664.6 may “receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment”, but may not “create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 810.)

The terms of the stipulation include:

“Terms. This Settlement Agreement resolves that certain credit account, bearing original account number *****5854, opened by Defendant with creditor Synchrony Bank. Defendant acknowledges that he/she/it owes the principal balance on the account in the amount of \$2,453.24 and court costs incurred by Plaintiff associated with the preparation of this lawsuit, this stipulation and efforts to obtain judgment. (Collectively these amounts shall be referred to as ‘Account Balance’). Defendant agrees to pay to Plaintiff and Plaintiff agrees to accept from Defendant as full and final settlement (resolution) of the above-entitled action the total amount of \$1,718.00 (‘Settlement Amount’). Defendant shall pay the Settlement Amount to Plaintiff by paying the minimum sum of \$72.00 on or before April 10, 2024 and, thereafter, by paying the minimum sum of \$72.00 on or before the 10th day of each consecutive month through and including February 10, 2026, followed by a final payment due on March 10, 2026 of \$62.00 until the Settlement Amount is fully paid. Defendant’s payments shall be credited against the Account Balance up and until the Settlement Amount is fully paid.” (Agreement, ¶ 1.)

“Conditional Dismissal During Repayment. The Parties agree that the court may conditionally dismiss this action and retain jurisdiction pursuant to California Code of Civil Procedure § 664.6 to enforce the terms of this Settlement Agreement.” (Agreement, ¶ 3.)

“Default. If payments are not received in the amounts and by the dates set forth in this Settlement Agreement or if payments are received but returned for ‘non-sufficient funds’ or otherwise ‘bounce,’ then Plaintiff may immediately file a noticed motion, together with a declaration regarding such non-payment under this Settlement Agreement, for entry of judgment for the Account Balance shown in paragraph 1, less credit for any payment received under this Settlement Agreement, plus court costs associated with filing and serving this action and any application or motion to obtain judgment as provided by this Settlement Agreement, and/or any other adjustments or credits, as applicable.” (Agreement, ¶ 5.)

“General Appearance. Defendant stipulates that his/her/its signature hereon and the filing of this Settlement Agreement shall, if Defendant has not already made his/her/its first appearance, constitute Defendant’s general appearance.” (Agreement, ¶ 7.)

The agreement is signed by counsel for plaintiff as well as by defendant.

“A settlement agreement is a contract, and the legal principles which apply to contracts generally apply to settlement contracts.” (Ibid.) “In order for acceptance of a proposal to result in the formation of a contract, the proposal “ ‘must be sufficiently definite, or must call for such definite terms in the acceptance, that the performance promised is reasonably

certain.' " [Citation.] A proposal " 'cannot be accepted so as to form a contract unless the terms of the contract are reasonably certain. [¶] The terms of a contract are reasonably certain if they provide a basis for determining . . . the existence of a breach and for giving an appropriate remedy.' " [Citation.] If, by contrast, a supposed " 'contract' " does not provide a basis for determining what obligations the parties have agreed to, and hence does not make possible a determination of whether those agreed obligations have been breached, there is no contract. (See, e.g., 1 Williston on Contracts (4th ed. 1990, Lord) § 4:18, p. 414 ["It is a necessary requirement that an agreement, in order to be binding, must be sufficiently definite to enable the courts to give it an exact meaning."]; see also Civ. Code § 3390, subd. 5 [a contract is not specifically enforceable unless the terms are " 'sufficiently certain to make the precise act which is to be done clearly ascertainable.' "])" (Id. at pp. 811-812.)

The stipulation contains definite terms that are reasonably certain. The parties entered into an enforceable contract.

Defendant defaulted by failing to make all payments and owes \$2,453.24 in principal balance.

Plaintiff also seeks court costs of \$283.24 associated with filing and service or process.

The motion will be granted.

Judges

Judge Donna D. Geck

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